APPENDIX H: Guidelines for Party-and-Party Costs Awards in District Court Cases in the State Courts of Singapore

I. Use of the Costs Guidelines

1. This Appendix provides guidelines for party-and-party costs in District Court[1] cases (the "Costs Guidelines").

2. The Costs Guidelines have been approved for publication by the Chief Justice and the Presiding Judge of the State Courts. They are intended to provide a general indication on the quantum and methodology of party-and-party costs awards in specified types of District Court proceedings, taking into account past awards made, internal practices and general feedback.

3. The Costs Guidelines serve only as a guide for parties and counsel. The fundamental governing principle is that the precise amount of costs awarded remains at the discretion of the Court. The Court may depart from the Costs Guidelines depending on the particular circumstances of each case, which include, without limitation, whether the case is an "enhanced jurisdiction" case.[2] For a non-exhaustive list of factors which may be relevant to the Court's exercise of its discretion, see Order 21, Rule 2(2) of the Rules of Court 2021 which is reproduced below:

"(2) In exercising its power to fix or assess costs, the Court must have regard to all relevant circumstances, including —

(*a*) efforts made by the parties at amicable resolution;

(*b*) the complexity of the case and the difficulty or novelty of the questions involved;

(*c*) the skill, specialised knowledge and responsibility required of, and the time and labour expended by, the solicitor;

(*d*) the urgency and importance of the action to the parties;

---

1 The Costs Guidelines do not apply to proceedings under Part 3 of the Protection from Harassment Act 2014 that are heard in any District Court.

2 An "enhanced jurisdiction" case refers to any of the following:

(a) any motor accident and / or personal injury claim involving a claim amount between $250,000 and $500,000, which is transferred from the General Division of the High Court to a District Court under the Supreme Court of Judicature (Transfer of Specified Proceedings to District Court) Order 2016;

(b) any claim exceeding $250,000, which parties agree that a District Court has the jurisdiction to hear and try under section 23 of the State Courts Act 1970; or

(c) any claim transferred from the General Division of the High Court to a District Court under section 54C of the State Courts Act 1970.

(*e*) the number of solicitors involved in the case for each party;

(*f*) the conduct of the parties;

(*g*) the principle of proportionality; and

(*h*) the stage at which the proceedings were concluded."

Nothing in the Costs Guidelines is intended to guide or influence the charging of costs payable to a solicitor by his own client.

4. The relationship / interaction between Parts II.A and II.B, and between Parts IV.A and IV.B of this Appendix, is as follows:

(a) If the contested summons is not listed in Part II.B, reference should be made to the costs range for contested applications set out in Part II.A.

(b) If the contested summons is listed in Part II.B, reference should be made to the costs range therein. However:

(i) If the said summons is one that is simple, and the lower end of the costs range set out in Part II.B is higher than the lower end of the costs range set out in Part II.A, reference may be made to the Part II.A costs range.

(ii) If the said summons is one that is complex, and the upper end of the costs range set out in Part II.B is lower than the upper end of the costs range set out in Part II.A, reference may be made to the Part II.A costs range.

(c) The approach in paragraphs 4(a) and 4(b) above is to apply to originating applications, save that the references to Parts II.A and II.B are to be read as referring to Parts IV.A and IV.B respectively.

5. There is no presumption that a higher amount of costs is to be awarded in respect of a summons that is heard before a District Judge (as opposed to a Registrar) at first instance.

6. A litigant who is not legally represented should take note of Order 21, Rule 7 of the Rules of Court 2021, the application of which shall remain unaffected by the Costs Guidelines.

7. It should further be noted that in the event of an appeal, costs awards made by the Court of first instance may be supplemented or otherwise modified by the appellate Court as appropriate.

8. The State Courts may from time to time review the Costs Guidelines.

II. Costs Guidelines for Summonses

A. General

	Nature of Application	Costs ($) (excl. disbursements)
1.	Uncontested	$200 – $1,000
2.	Contested ▪ Application on normal list lasting less than 45 mins ▪ Application on normal list lasting 45 mins or longer ▪ Complex or lengthy application fixed for special hearing (duration of 3 hrs)	 $400 – $2,000 $600 – $4,000 $3,000 – $10,000

B. Specific

	Nature of Application	Costs ($) (excl. disbursements)
1.	Adjournment	$200 – $800
2.	Extension of time	$300 – $900
3.	Amendment of pleadings* *[*The costs range for amendment of pleadings stipulated in the Costs Guidelines relates only to the application itself.* *Separate costs for the amendments (*eg, *for costs thrown away as a result of the amendment) may be sought.]*	$500 – $2,000
4.	Further and better particulars	$700 – $2,000

	Nature of Application	Costs ($) (excl. disbursements)
5.	Production of documents	$700 – $3,000
6.	Security for costs	$400 – $2,000
7.	Interim payments (Order 13, Rule 8)	$700 – $2,000
8.	Striking out (Order 9, Rule 16)	
	Striking out of part(s) of pleadings / affidavit	$500 – $3,000
	Striking out of whole suit / defence* *[*The costs range for striking out of whole suit / defence relates only to the application itself.* *If the applicant is successful in striking out the whole suit / defence, separate costs for the action (based on the pre-trial range, if appropriate) may be sought.]*	$3,000 – $10,000
9.	Summary judgment (Order 9, Rule 17)* *[*Order 21, Appendix 1, Part 2, para 2(c) of the Rules of Court 2021 provides for the scale of fixed costs for applications under Order 9, Rule 17 of the Rules of Court 2021. The Court may depart from the said scale and otherwise order: see Order 21, Rule 10 of the Rules of Court 2021.* *The costs range for an application under Order 9, Rule 17 of the Rules of Court 2021 stipulated in the Costs Guidelines relates only to the application itself. If the claimant is successful in obtaining judgment for the whole action or part of the action, separate costs for the action (or the part of the action for which judgment is granted) may be sought.]*	
	Summary judgment given	$3,000 – $10,000
	Application for summary judgment dismissed	$3,000 – $10,000

	Nature of Application	Costs ($) (excl. disbursements)
10.	Setting aside of judgment	$600 – $10,000
11.	Stay of proceedings	
	for arbitration	$1,200 – $9,000
	on *forum non conveniens*	$1,200 – $9,000
	pending appeal	$700 – $2,000
12.	Examination of Enforcement Respondent	$400 – $1,500
13.	Discharge of solicitor	$400 – $800
14.	Setting aside of service	$400 – $3,000
15.	Permission to appeal to the General Division of the High Court	$800 – $2,000
16.	Division of issues at trial to be heard separately	$500 – $1,500
17.	Discharge of injunction / search order	$1,400 – $6,000
18.	Application for committal order	$1,000 – $3,000
19.	Application for unless order	$800 – $2,000

III. Costs Guidelines for Trials

A. Section 1 Costs

(i) Party-and-Party Costs for trials (except for matters which are settled before trial)[3]

	Nature of Claim	Costs ($) (excl. disbursements)		
		Pre-trial[4]	**Trial (daily tariff)**[5]	**Post-trial Work**[6]
1.	Non-injury motor accident ("NIMA")	$5,000 – $15,000	$2,500 – $6,000	Up to $4,000
2.	Personal injury ("PI")	$8,000 – $25,000	$2,500 – $6,000	Up to $6,000
3.	Torts[7]	$9,000 – $30,000	$2,500 – $6,000	Up to $8,000
4.	Commercial[8]	$9,000 – $30,000	$2,500 – $6,000	Up to $8,000
5.	Equity and trusts	$14,000 – $30,000	$5,000 – $6,000	Up to $8,000
6.	Construction and renovation	$11,000 – $35,000	$3,500 – $6,000	Up to $8,000
7.	Intellectual property ("IP") and information technology ("IT")	$14,000 – $30,000	$5,000 – $6,000	Up to $8,000

3 This section applies to unbifurcated trials, and bifurcated trials where all stages of the trial are contested. In a bifurcated trial where the claimant obtains interlocutory judgment for damages to be assessed after trial, but the action is settled thereafter, the costs awarded for the entire action should generally be guided by the lower end of the ranges in this table, with the Court having discretion to award higher costs if substantial work is done during the assessment of damages phase prior to settlement.

4 Pre-trial work includes compliance with any applicable pre-action protocols, circulars, notices and directions, pleadings, production of documents, and affidavits of evidence-in-chief.

5 Each half-day of a trial will generally attract 50% of the daily tariff.

6 Post-trial work does not include work carried out after judgment is obtained (*eg*, enforcement proceedings).

7 Includes claims in negligence, trespass, defamation and / or conspiracy, but excludes NIMA and PI claims.

8 Includes corporation / company law disputes, contract, and banking and finance disputes.

	Nature of Claim	Costs ($) (excl. disbursements)		
8.	Medical and professional negligence	$14,000 – $35,000	$5,000 – $6,000	Up to $8,000

(ii) Party-and-Party Costs for assessment of damages ("AD") hearings (except for matters which are settled before the AD hearing)[9]

	Nature of Claim	Costs ($) (excl. disbursements)		
		Pre-AD[10]	**AD (daily tariff)[11]**	**Post-AD Work[12]**
1.	NIMA	$4,000 – $12,000	$2,500 – $6,000	Up to $3,000
2.	PI	$6,000 – $20,000	$2,500 – $6,000	Up to $5,000
3.	Torts[13]	$7,000 – $20,000	$2,500 – $6,000	Up to $6,000
4.	Commercial[14]	$7,000 – $20,000	$2,500 – $6,000	Up to $6,000
5.	Equity and trusts	$11,000 – $20,000	$5,000 – $6,000	Up to $7,000
6.	Construction and renovation	$9,000 – $26,000	$3,500 – $6,000	Up to $7,000

9 This section applies where default or consent interlocutory judgment is entered for damages to be assessed and the dispute is solely on the assessment of damages. This includes AD hearings before a District Judge or a Registrar.

10 Pre-AD work includes compliance with any applicable pre-action protocols, circulars, notices and directions, pleadings, production of documents, and affidavits of evidence-in-chief.

11 Each half-day of an AD hearing will generally attract 50% of the daily tariff.

12 Post-AD work does not include work carried out after judgment is obtained (*eg*, enforcement proceedings).

13 Includes claims in negligence, trespass, defamation and / or conspiracy, but excludes NIMA and PI claims.

14 Includes corporation / company law disputes, contract, and banking and finance disputes.

	Nature of Claim	Costs ($) (excl. disbursements)		
7.	IP and IT	$11,000 – $24,000	$5,000 – $6,000	Up to $7,000
8.	Medical and professional negligence	$11,000 – $26,000	$5,000 – $6,000	Up to $7,000

(iii) Party-and-Party Costs for matters which are settled before trial or before the AD hearing (where interlocutory judgment for damages to be assessed is entered by consent, in default of a notice of intention to contest or not contest an originating claim, or in default of a defence)[15]

	Nature of Claim	Costs ($) for Work Done[16] (excl. disbursements)		
		Pleadings	**Production of Documents**	**AEICs**
1.	NIMA	$2,000 – $9,000[17]		$2,000 – $6,000
2.	PI	$3,000 – $15,000[18]		$3,000 – $10,000
3.	Torts[19]	$2,000 – $12,000	$2,000 – $6,000	$4,000 – $12,000
4.	Commercial[20]	$2,000 – $12,000	$2,000 – $6,000	$4,000 – $12,000
5.	Equity and trusts	$3,000 – $12,000	$3,000 – $6,000	$6,000 – $12,000

15 This section applies where all key issues in the dispute (*ie*, both liability and quantum) are settled. Where interlocutory judgment is entered by consent or in default, leaving damages to be assessed by the Registrar, costs will generally be reserved to the Registrar assessing damages.

16 The Court retains discretion to consider whether additional costs for getting up for trial should be provided for in the appropriate case.

17 This range applies to work done for pleadings, documents and Court Dispute Resolution.

18 This range applies to work done for pleadings, documents and Court Dispute Resolution.

19 Includes claims in negligence, trespass, defamation and / or conspiracy, but excludes NIMA and PI claims.

20 Includes corporation / company law disputes, contract, and banking and finance disputes.

	Nature of Claim	Costs ($) for Work Done[16] (excl. disbursements)		
6.	Construction and renovation	$2,000 – $14,000	$2,000 – $7,000	$4,000 – $14,000
7.	IP and IT	$3,000 – $12,000	$3,000 – $6,000	$6,000 – $12,000
8.	Medical and professional negligence	$3,000 – $14,000	$3,000 – $7,000	$6,000 – $14,000

B. Section 2: Costs for Assessment

$350 – $1,500, excluding disbursements.

IV. Costs Guidelines for Originating Applications

A. General

	Nature of Originating Application	Costs ($) (excl. disbursements)
1.	Uncontested	$500 – $3,000
2.	Contested	$2,000 – $15,000

B. Specific

	Nature of Originating Application	Costs ($) (excl. disbursements)
1.	Mortgage action under Order 52	$2,400 – $5,000
2.	Originating application commenced under Order 6, Rule 1(3)(*c*)	$1,500 – $8,000
3.	Originating application without notice commenced under the Building and Construction Industry Security of Payment Act 2004	$1,400
4.	Originating application commenced under the Building Maintenance and Strata Management Act 2004	$1,500 – $10,000
5.	Originating application seeking a transfer of a matter from a Magistrate's Court to a District Court	$500 – $2,000

**The costs ranges under Parts IV.A and IV.B are inclusive of costs for any pre-hearing and post-hearing work carried out for the matter, and do not include costs for work carried out after judgment is obtained (*eg, *enforcement proceedings).*

V. Costs Guidelines for Appeals

	Nature of Appeal	Costs ($) (excl. disbursements)
1.	Appeal before a District Judge against a judgment or order obtained in an interlocutory application under Order 18, Division 2	$1,000 – $5,000
2.	Appeal before a District Judge against a judgment or order following an assessment of damages under Order 18, Division 2	$1,200 – $7,000